



CHAPTER xli

An Act to confer further powers on the urban district council of Orpington in regard to private streets; to make further and better provision for the health, local government, finance and improvement of the urban district of the said Council; and for other purposes.

[1st August, 1962.]

WHEREAS the urban district of Orpington (hereinafter referred to as "the district") is under the government of the urban district council of Orpington (hereinafter referred to as "the Council");

And whereas since the cost to the frontagers of laying sewers in private streets in certain parts of the district would be excessive and can be reduced it is expedient to extend the scope of the code of 1892 as enacted in Part IX of the Highways Act, 1959, as in this Act provided:

And whereas it is expedient that further and better provision should be made for the local government and improvement of the district and that the powers of the Council in relation thereto should be enlarged and extended:

And whereas it is expedient to make further provision with regard to the finances of the district as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the Bill for this Act the requirements of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I PRELIMINARY

Short title.

1. This Act may be cited as the Orpington Urban District Council Act, 1962.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary;

Part II.—Private streets;

Part III.—Finance and miscellaneous;

Part IV.—General.

Interpreta-
tion.

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Act of 1936 have the same respective meanings, unless there be something in the subject or context repugnant to such construction and in this Act unless the subject or context otherwise requires—

“ the Act of 1936 ” means the Public Health Act, 1936;

“ Council ” means the urban district council of Orpington;

“ district ” means the urban district of Orpington;

“ enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the district;

“ general rate fund ” means the general rate fund of the district;

“ Minister ” means the Minister of Housing and Local Government.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II PRIVATE STREETS

Power to
apply code
of 1892 to
sewers in
private land.

4.—(1) Where the Council—

(a) are satisfied that the cost of sewerage a private street in any part of the district to which this section applies in accordance with the code of 1892 would be excessive and that it would be more economical in connection with the sewerage of the street to construct one or more off-street sewers; and

- (b) include in the resolution passed under subsection (1) of section 174 of the Act of 1959 a declaration to that effect;

any such off-street sewer shall for the purposes of the code of 1892 in its application to any such part of the district be deemed to be street works constructed by the Council under that code in the street to which the resolution relates and the aggregate expenses incurred by the Council in connection with the sewerage of the street (including the expenses of constructing one or more off-street sewers) shall subject to the provisions of that code be apportioned between the premises fronting the street.

- (2) In the application of the code of 1892 as aforesaid—

- (a) subsection (2) of section 174 of the Act of 1959 shall be read and have effect as if after paragraph (b) thereof there were inserted the following new paragraph:—

“(bb) an estimate of the expense which probably would have been incurred had it been resolved to sewer the street in accordance with the code of 1892.”;

- (b) paragraph 3 of the Fifteenth Schedule to the Act of 1959 shall apply to the estimate required by paragraph (bb) of the said subsection (2) as it applies to the estimate required by paragraph (b) thereof;

- (c) subsection (1) of section 177 of the Act of 1959 shall be read and have effect as if after paragraph (d) thereof the following paragraph were inserted:—

“(dd) that the expense of sewerage of the street in accordance with the code of 1892 would not be excessive and it would not be more economical to carry out the proposed works than to sewer the street as aforesaid.”;

- (d) in determining under subsection (2) of section 178 of the Act of 1959 any objection directed to the grounds specified in paragraph (dd) of subsection (1) of the said section 177 the court shall take into account the difference (if any) between the estimated cost of making communications between the premises for the drainage of which the off-street sewer or sewers comprising the proposed works is or are to be constructed and that sewer or sewers and the estimated cost which would have been incurred in making communications between those premises and the sewer or sewers which would have been constructed had it been resolved to sewer the street in accordance with the code of 1892.

- (3) This section shall apply to so much of the district as is comprised in the Biggin Hill, Cudham and Green Street Green Wards as delineated on the map deposited with the Council which has been sealed with the common seal of the county

PART II
—cont.

council of the administrative county of Kent and marked "The Orpington Urban District (Wards and Councillors) Order 1948: Map of Wards".

(4) In this section words and expressions to which meanings are assigned for the purposes of Part IX of the Act of 1959 shall have the same respective meanings and—

"the Act of 1959" means the Highways Act, 1959;

"off-street sewer" means a sewer constructed in land not forming part of a street; and

"street" includes a part of a street.

PART III

FINANCE AND MISCELLANEOUS

Reserve
funds.

5.—(1) (a) The Council may (if they think fit) provide a reserve fund in respect of any undertaking of the Council from which revenue is derived by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in any securities in which trustees are for the time being authorised by law to invest trust funds until the fund so provided amounts to the maximum reserve fund for the time being prescribed by the Council.

(b) Any income arising from the investment of the moneys in the reserve fund in manner provided by this subsection shall be carried to and form part of the general rate fund and an amount equivalent to such income shall be credited to the reserve fund.

(2) The reserve fund provided under this section may in respect of the undertaking to which it relates be applied—

(a) in making good any deficiency at any time happening in the income of the Council from the undertaking; or

(b) in meeting any extraordinary claim or demand at any time arising against the Council in respect of the undertaking; or

(c) in or towards the payment of the cost of renewing improving or extending any works buildings machinery plant or conveniences forming part of the undertaking or otherwise for the benefit thereof;

and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) If and when the Council establish a reserve fund under this section in respect of any such undertaking as aforesaid, any moneys standing to the credit of any reserve fund or contingency or depreciation fund provided by the Council in respect of that

undertaking and in existence at the date of the passing of this Act shall be carried to and form part of the reserve fund provided under this section in respect of that undertaking.

PART III
—cont.

(5) In the event of any undertaking in respect of which the Council has established a reserve fund ceasing to exist the Council may apply such fund towards the discharge of any debt of the Council or otherwise for any purpose for which capital money may be applied.

6. All costs charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund maintained by the Council or otherwise in relation thereto shall be paid by the Council out of that fund.

Expenses of
administration
of super-
annuation
fund.

7. The provisions of section 59 of the Rating and Valuation Act, 1925, shall apply to the sending or service of any demand note for any sum which is or may be due to the Council in connection with any undertaking, service or department of the Council in any case where the sum is recoverable under common law or under an enactment and no provision is made in that enactment for the service or sending of demand notes.

Extension of
section 59 of
Rating and
Valuation
Act, 1925.

8.—(1) Where the Council have paid in advance to any employee the amount of his emoluments and such employee dies before the expiration of the period in respect of which such payment is made, the Council shall not be required to demand the return of such portion thereof not exceeding ten pounds as the Council may determine.

Recovery of
sums paid to
officers, etc.

(2) In any case where the Council exercise the powers of the foregoing subsection they shall transfer from the general rate fund to the superannuation fund maintained by them the amount which but for the exercise of those powers would have been returned to the fund.

(3) In this section—

“employee” means any officer or servant of the Council or any officer or servant whose salary or wages are payable by the Council and includes any former officer or servant who is in receipt of a superannuation allowance or benefit payable out of the superannuation fund maintained by the Council; and

“emoluments” means in relation to an officer or servant his salary or wages (as the case may be) and in relation to a former officer or servant in receipt of a superannuation allowance or benefit the amount of that allowance or benefit.

9.—(1) If any money is payable by the Council to any employee (other than wages or salary) or creditor or the holder of any authorised security and the person entitled to such payment is a minor, the receipt of the guardian shall be a sufficient discharge to the Council.

Receipt in
case of
minors.

PART III
—cont.

(2) In this section “ authorised security ” means any mortgage, stock, bond or other security which the Council are for the time being authorised to grant, create or issue or upon or by means of which the Council are for the time being authorised to raise money.

PART IV
GENERAL

Protection of
members and
officers of
Council from
personal
liability.

10. Section 265 of the Public Health Act, 1875, shall apply to the Council as if any reference in that section to the said Act of 1875 included a reference to this Act.

Application of
section 328 of
Act of 1936.

11. Section 328 of the Act of 1936 shall apply to the Council as if any reference in that section to that Act included a reference to this Act.

Saving for
town and
country
planning.

12. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of
Act.

13.—(1) All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Council.

(2) The Council may borrow without the consent of any sanctioning authority the sum requisite for the payment of the said costs, charges and expenses and they shall repay all moneys so borrowed within such periods as the Council may determine not exceeding five years from the passing of this Act.

(3) The provisions of Part IX of the Local Government Act, 1933, so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of the money borrowed shall as respects that money be the period fixed by the said Part IX.

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Table of Statutes referred to in this Act

Short title	Session and chapter
Public Health Act, 1875.. .. .	38 & 39 Vict. c. 55.
Rating and Valuation Act, 1925	15 & 16 Geo. 5 c. 90.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Public Health Act, 1936.. .. .	25 Geo. 5 & 1 Edw. 8 c. 51.
Town and Country Planning Act, 1947	10 & 11 Geo. 6 c. 51.
Highways Act, 1959	7 & 8 Eliz. 2 c. 25.

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